

# SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES

**NOTE: OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, AND 30.**

|                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |                                                            |                                                                                                                                                                                                                                                                       |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |                                                                                                                                         |                                                 |
|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------|-------------------------------------------------|
| 1. REQUISITION NUMBER                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |                                                            |                                                                                                                                                                                                                                                                       | PAGE 1 OF                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |                                                                                                                                         |                                                 |
| 2. CONTRACT NUMBER                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    | 3. AWARD/EFFECTIVE DATE                                    | 4. ORDER NUMBER                                                                                                                                                                                                                                                       | 5. SOLICITATION NUMBER                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            | 6. SOLICITATION ISSUE DATE                                                                                                              |                                                 |
| 7. FOR SOLICITATION INFORMATION CALL:                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |                                                            |                                                                                                                                                                                                                                                                       | a. NAME                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |                                                                                                                                         | b. TELEPHONE NUMBER ( <i>No collect calls</i> ) |
| 9. ISSUED BY CODE                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |                                                            |                                                                                                                                                                                                                                                                       | 10. THIS ACQUISITION IS <input type="checkbox"/> UNRESTRICTED OR <input type="checkbox"/> SET ASIDE: % FOR:<br><input type="checkbox"/> SMALL BUSINESS <input type="checkbox"/> WOMEN-OWNED SMALL BUSINESS (WOSB) NORTH AMERICAN INDUSTRY CLASSIFICATION STANDARD (NAICS):<br><input type="checkbox"/> HUBZONE SMALL BUSINESS <input type="checkbox"/> ECONOMICALLY DISADVANTAGED <input type="checkbox"/> DISADVANTAGED<br><input type="checkbox"/> SERVICE-DISABLED <input type="checkbox"/> WOMEN-OWNED SMALL BUSINESS (EDWOSB) SIZE STANDARD:<br><input type="checkbox"/> VETERAN-OWNED SMALL BUSINESS (SDVOSB) <input type="checkbox"/> 8(A) |                                                                                                                                         |                                                 |
| 11. DELIVERY FOR FREE ON BOARD (FOB) DESTINATION UNLESS BLOCK IS MARKED<br><input type="checkbox"/> SEE SCHEDULE                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |                                                            | 12. DISCOUNT TERMS                                                                                                                                                                                                                                                    |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   | 13a. THIS CONTRACT IS A<br><input type="checkbox"/> RATED ORDER UNDER THE DEFENSE PRIORITIES AND ALLOCATIONS SYSTEM - DPAS (15 CFR 700) |                                                 |
| 13b. RATING                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |                                                            | 14. METHOD OF SOLICITATION REQUEST<br><input type="checkbox"/> REQUEST <input type="checkbox"/> INVITATION <input type="checkbox"/> FOR<br><input type="checkbox"/> FOR QUOTE <input type="checkbox"/> FOR BID <input type="checkbox"/> PROPOSAL<br>(RFQ) (IFB) (RFP) |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |                                                                                                                                         |                                                 |
| 15. DELIVER TO CODE                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |                                                            |                                                                                                                                                                                                                                                                       | 16. ADMINISTERED BY CODE                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |                                                                                                                                         |                                                 |
| 17a. CONTRACTOR/ OFFEROR CODE FACILITY CODE                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |                                                            |                                                                                                                                                                                                                                                                       | 18a. PAYMENT WILL BE MADE BY CODE                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |                                                                                                                                         |                                                 |
| TELEPHONE NUMBER                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |                                                            |                                                                                                                                                                                                                                                                       | 18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED <input type="checkbox"/> SEE ADDENDUM                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |                                                                                                                                         |                                                 |
| 17b. CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER <input type="checkbox"/>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |                                                            |                                                                                                                                                                                                                                                                       |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |                                                                                                                                         |                                                 |
| 19. ITEM NUMBER                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       | 20. SCHEDULE OF SUPPLIES/SERVICES                          |                                                                                                                                                                                                                                                                       | 21. QUANTITY                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      | 22. UNIT                                                                                                                                | 23. UNIT PRICE                                  |
|                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |                                                            |                                                                                                                                                                                                                                                                       |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |                                                                                                                                         |                                                 |
|                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       | (Use Reverse and/or Attach Additional Sheets as Necessary) |                                                                                                                                                                                                                                                                       |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |                                                                                                                                         |                                                 |
| 25. ACCOUNTING AND APPROPRIATION DATA                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |                                                            |                                                                                                                                                                                                                                                                       |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   | 26. TOTAL AWARD AMOUNT ( <i>For Government Use Only</i> )                                                                               |                                                 |
| <div style="display: flex; justify-content: space-between;"> <div> <input type="checkbox"/> 27a. SOLICITATION INCORPORATES BY REFERENCE (FEDERAL ACQUISITION REGULATION) FAR 52.212-1, 52.212-4. FAR 52.212-3 AND 52.212-5 ARE ATTACHED. ADDENDA<br/> <input type="checkbox"/> 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA<br/> <input type="checkbox"/> 28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED </div> <div> <input type="checkbox"/> 29. AWARD OF CONTRACT: REFERENCE OFFER<br/> DATED . YOUR OFFER ON SOLICITATION (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN, IS ACCEPTED AS TO ITEMS: </div> </div> |                                                            |                                                                                                                                                                                                                                                                       |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |                                                                                                                                         |                                                 |
| 30a. SIGNATURE OF OFFEROR/CONTRACTOR                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |                                                            |                                                                                                                                                                                                                                                                       | 31a. UNITED STATES OF AMERICA ( <i>SIGNATURE OF CONTRACTING OFFICER</i> )                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |                                                                                                                                         |                                                 |
| 30b. NAME AND TITLE OF SIGNER ( <i>Type or print</i> )                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |                                                            | 30c. DATE SIGNED                                                                                                                                                                                                                                                      | 31b. NAME OF CONTRACTING OFFICER ( <i>Type or print</i> )                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |                                                                                                                                         | 31c. DATE SIGNED                                |

## Continuation of Supplies or Services and Prices/Costs

### Additional Information/Notes

GROUNDS MAINTENANCE

U.S. ARMY CORPS OF ENGINEERS

CAPE COD CANAL

BUZZARDS BAY, MA.

PERFORMANCE WORK STATEMENT

### Bid Schedule -Base Year 2026

| TASK / ITEM NUMBER                                                       | UNIT | QTY | UNIT PRICE | TOTAL |
|--------------------------------------------------------------------------|------|-----|------------|-------|
| 1. Bi-Weekly Mowing<br><br>27.4 acres, Locations 1-11<br>April - October | Each | 13  |            |       |
| 2. Bi-Weekly Mowing<br>6.5 acres, Locations 12-15<br>April - October     | Each | 13  |            |       |
| 3. Landscaping Services<br>Locations 16-20<br><br>May, July & September  | Each | 3   |            |       |
|                                                                          | Job  | 1   |            |       |

|                                                   |  |  |       |  |
|---------------------------------------------------|--|--|-------|--|
| 4. Mulching Service<br>Locations 21-24<br><br>May |  |  |       |  |
|                                                   |  |  | Total |  |

**Bid Schedule -Option Year 2027**

| TASK / ITEM NUMBER                                                       | UNIT | QTY | UNIT PRICE | TOTAL |
|--------------------------------------------------------------------------|------|-----|------------|-------|
| 1. Bi-Weekly Mowing<br><br>27.4 acres, Locations 1-11<br>April - October | Each | 13  |            |       |
| 2. Bi-Weekly Mowing<br>6.5 acres, Locations 12-15<br>April - October     | Each | 13  |            |       |
| 3. Landscaping Services<br>Locations 16-20<br><br>May, July & September  | Each | 3   |            |       |
|                                                                          |      |     |            |       |

|                                                   |     |   |       |  |
|---------------------------------------------------|-----|---|-------|--|
| 4. Mulching Service<br>Locations 21-24<br><br>May | Job | 1 |       |  |
|                                                   |     |   | Total |  |

\*\*\* END OF NARRATIVE \*\*\*

## Continuation of Description

**INTERESTED VENDORS SHALL REVIEW THE "ADDENDUM TO 52.212-1" AND "ADDENDUM TO EVALUATION" FOR INSTRUCTIONS AND EVALUATION CRITERIA. VENDORS ARE RESPONSIBLE FOR ENSURING THEIR QUOTE SUBMISSION MEETS ALL REQUIREMENTS. FAILURE TO DO SO MAY RESULT IN QUOTES BEING DEEMED NON-RESPONSIVE AND REMOVED FROM CONSIDERATION.**

**THE MANDATORY SOLICITATION SURVEY SHALL BE COMPLETED IN ITS ENTIRETY AND RETURNED WITH QUOTES. FAILURE TO DO SO MAY RESULT IN QUOTES BEING DEEMED NON-RESPONSIVE AND REMOVED FROM CONSIDERATION.**

GROUNDS MAINTENANCE

U.S. ARMY CORPS OF ENGINEERS

CAPE COD CANAL

BUZZARDS BAY, MA.

PERFORMANCE WORK STATEMENT

### A. GENERAL

1. Performance Requirements - Furnish all equipment, materials, and labor to perform the grounds maintenance services at the Cape Cod Canal Project Area. Services are to be provided in accordance with the following Performance Work Statement. Work shall be performed in a timely manner and to the satisfaction of the Technical Point of Contact.

2. Location - The Cape Cod Canal Project area is located in the towns of Sandwich and Bourne Massachusetts. The office is located at 40 Academy Drive in Buzzards Bay, Massachusetts.

3. Contract Term - The contract period of performance shall be from contract award through 18 April 2027. In addition, the Government may exercise one (1) option year with the same scope of services. The option year would have a period of performance from 19 April 2027 through 31 October 2027.

Site Visit - Contact the Technical Point of Contact, Park Ranger, Justin Nelson 978-318-8552 or Justin.L.Nelson@usace.army.mil to arrange a site visit.

Interested vendors should conduct a site visit to confirm understanding of the scope, inspect existing conditions, and familiarize themselves with the site(s) prior to submitting a quote. No extra payment will be allowed for perceived additional work caused by unfamiliarity with site conditions and requirements.

4. Safety:

a. General:

All work shall be conducted in accordance with the U.S. Army Corps of Engineers (USACE) Safety and Occupational Health Requirements (EM 385-1-1, most recent edition), and all applicable Occupational Safety and Health Administration (OSHA), federal, state, and local safety and health requirements. A copy of EM 385-1-1 can be accessed electronically at the following link:

[https://www.publications.usace.army.mil/Portals/76/EM%20385-1-1%20\\_EFFECTIVE%2015March2024.pdf](https://www.publications.usace.army.mil/Portals/76/EM%20385-1-1%20_EFFECTIVE%2015March2024.pdf)

Project staff reserve the right to cease work at any time should the safety of employees, Contractors, and/or the public become jeopardized.

b. Accident Prevention Plan (APP):

The Contractor shall prepare a site-specific Accident Prevention Plan. The APP must be written by a Competent Person (CP) and document the specific work processes, equipment, materials to be used, hazards and applicable control measures.

The mandatory ENG Form 6293 (Accident Prevention Plan Worksheet) must be submitted and accepted prior to beginning on site work:

[https://www.publications.usace.army.mil/Portals/76/Eng\\_Form\\_6293\\_Aug%202024%20-%20FINAL.pdf](https://www.publications.usace.army.mil/Portals/76/Eng_Form_6293_Aug%202024%20-%20FINAL.pdf)

A preparatory meeting shall be conducted by the prime contractor to discuss the APP contents with all effected onsite employees. The Prime Contractor is responsible for informing the subcontractors of the safety provisions under the terms of the contract, the penalties for noncompliance, and inspecting subcontractor operations to ensure that accident prevention responsibilities are being carried out.

Daily safety meetings shall be held and documented. Records shall be available to the Technical Point of Contact upon request.

c. Activity Hazard Analysis (AHA):

An AHA shall be submitted and accepted for each definable feature of work (DFOW) in accordance with EM 385-1-1, Chapter 2-6. A DFOW is defined as any task, which is separate and distinct from other tasks, has separate control requirements, or is identified as different trades or disciplines. The AHA shall be continuously reviewed and revised to address changing site conditions as appropriate.

For a non-mandatory formatted outline of an AHA, see ENG Form 6206 (Activity Hazard Analysis)

[https://www.publications.usace.army.mil/Portals/76/Eng\\_Form\\_6206\\_Sep%202024%20-%20FINAL.pdf](https://www.publications.usace.army.mil/Portals/76/Eng_Form_6206_Sep%202024%20-%20FINAL.pdf)

d. Site Safety and Health Officer (SSHO) Requirements:

The Contractor shall employ a minimum of one person to function as a Level 3, SSHO. A Level 3 SSHO is a designated Qualified Person (QP) or Competent Person (CP) with Safety and Occupational Health (SOH) responsibility that meets the requirements of EM 385-1-1, Chapter 2-3. b and 2-4.b.

Level 3 SSHOs must have training, knowledge, and/or experience identifying hazards and implementing controls for the work being performed.

The SSHO shall be present at the project site and be responsible for overseeing the implementation of the prime contractor's SOH program. Contractor shall designate all SSHOs on a mandatory ENG Form 6282 (Site Safety and Health Officer Designation Letter):

[https://www.publications.usace.army.mil/Portals/76/Eng\\_Form\\_6282\\_Site%20Safety%20&%20Health%20Officer%20\(SSHO\)%20Designation%20Letter\\_2024%20Aug%20-%20FINAL.pdf](https://www.publications.usace.army.mil/Portals/76/Eng_Form_6282_Site%20Safety%20&%20Health%20Officer%20(SSHO)%20Designation%20Letter_2024%20Aug%20-%20FINAL.pdf)

e. First-Aid and CPR Personnel Requirements:

For shifts with multiple employees, provide at least two employees that are certified to administer First Aid and CPR. When employees work alone, they must be certified in First Aid and be provided an effective means of communication to call for assistance in the event of an emergency. Minimum First Aid and CPR qualifications are outlined in EM 385-1-1, Chapter 3-3.

f. Additional Personnel Requirements:

Other Competent Person (CP) or Qualified Persons (QP) may be required per EM 385-1-1 and/or other sections of this Scope of Work, based on the definable features of work for this project.

g. Accident Reporting:

All accidents and near misses shall be investigated by the Contractor and reported to the Technical Point of Contact in accordance with EM 385-1-1, Table 2-1.

The mandatory ENG Form 3394 shall be completed and submitted to the Technical Point of Contact within seven (7) days of an incident: [https://www.publications.usace.army.mil/Portals/76/Publications/EngineerForms/Eng\\_Form\\_3394\\_2021Aug.pdf](https://www.publications.usace.army.mil/Portals/76/Publications/EngineerForms/Eng_Form_3394_2021Aug.pdf)

h. Employee Exposure Data:

The Contractor shall electronically report total employee work hours (including subcontractors) to the Technical Point of Contact by close of business on the 10th calendar day of the following month.

5. Pre-Work Conference - Prior to the start of any work, the Technical Point of Contact will schedule and conduct a pre-work conference. The Contractor's Project Manager and Quality

Control Personnel shall be physically present at this meeting. The Contractor shall directly oversee all work on the project and the Project Manager and Quality Control Personnel shall have the authority to act on behalf of the Contractor. This conference will be held at the time and location agreeable to the Government and Contractor. No work may be performed under this contract prior to this conference. The purpose of the conference is to enable the Technical Point of Contact to outline the procedures that will be followed by the Government in its administration of the contract, and to discuss the performance that will be expected from the Contractor. This conference will allow the Contractor an opportunity to ask questions about the Government's administration and inspection of contract work or obtain other pertinent information that might be required. At the pre-work conference the Contractor shall provide the name of the project superintendent with a telephone number for project coordination.

The following is a general list of items for discussion during this Pre-Work Conference:

- i. Authority of the Technical Point of Contact and Quality Assurance Inspectors.
- ii. Contractor's Safety Program (including sub-contractors).
- iii. Accident Prevention Plan and Activity Hazard Analysis
- iv. Safety Meetings (Documented on NED Form 251)
- v. Accident Reporting (ENG Form 3394)
- vi. Safety Data Sheet (SDS) requirements
- vii. Contractor's Equipment
- viii. Correspondence, Communication, Security and Administrative Procedures
- ix. Invoice and payment.

6. Service Areas/ Locations - The service areas for this contract are located at the following locations, see attached maps for specific work areas. The Contractor shall complete 100% of the work required for each service area before moving on to the next service area.

North Side Areas are located on the North Side (Mainland Side) of the Cape Cod Canal:

- a. Cape Cod Canal Field Office [Location 11, 16, & 21]
- b. Buzzards Bay Rec. Area [Locations 10 & 20]
- c. Fields A, B and C [Locations 13, 14 & 15 respectively]
- d. Herring Run [Locations 3, 17 & 22]
- e. Sagamore Rec. Area. [Locations 4, 18 & 24]



f. Belmont Rock Rec. Area. [Location 2]

g. Three Panel Sign Rec. Area [Location 1]

South Side Areas are all located on the South Side (Cape Side) of the Cape Cod Canal:

h. Sandcatcher Rec. Area [Location 6]

i. Sandwich Rec. Area [Location 5]

j. Midway Rec. Area [Location 7]

k. Bourne Rec. Area [Locations 8, 19 & 23]

l. Tidal Flats Rec. Area. [Location 9]

m. Wings Neck Radar Site (7 miles south of the Bourne Bridge) [Location 12]

7. Schedule - Services will be performed from 20 April 2026 or contract award date if later through 31 October 2026. In addition, the Government may exercise one (1) optional year with the same performance requirements. Option year one (1) would include the performance of services from 19 April 2027 through 31 October 2027.

The Pre-Work Conference shall be completed within 7 days of Contract Award. All pre-work submittals shall be submitted within 7 days of contract award. The Government reserves up to 7 days for review and acceptance on each submittal/resubmittal from the date of receipt. If revisions are necessary to the submittals, the Contractor shall make such revisions and shall be resubmitted to the Government in an acceptable form within 7 days of the Government's response, unless additional time is granted by the Government in writing. No field work may proceed prior to the acceptance of pre-work submittals.

a. "Recreation Area" mowing and trimming services shall be conducted one (1) time in the month of April and once every other week between May and October not to exceed thirteen (13) mowing services during the contract period of performance. Exact service dates to be coordinated w/ Technical Point of Contact.

Note: If contract award occurs after April 2026, services shall begin with the May schedule.

b. "Field mowing" services shall be conducted one (1) time in the month of April and once every other week between May and October not to exceed Thirteen (13) mowing services during the contract period of performance. Exact service dates to be coordinated w/ Technical Point of Contact.

Note: If contract award occurs after April 2026, services shall begin with the May schedule.

c. "Landscaping" services shall be conducted three (3) times during the period of performance. Trimming shrubs/ bushes and weeding services shall be conducted one (1) time during the month of May, one (1) time in July, and one (1) time in September. Exact service dates to be coordinated w/ Technical Point of Contact. See section "B. Technical Requirements" below for particulars.

d. "Mulching" A one (1) time mulching service will be performed during the May landscaping service. See section "B. Technical Requirements" below for particulars. Exact service dates to be coordinated w/ Technical Point of Contact.

e. Mowing and trimming will not be permitted before 6:00 am or after 5:00 pm within park recreation areas unless approved in advance by the Technical Point of Contact. No mowing or trimming shall be conducted on Saturdays, Sundays, and holidays unless approved in advance by the Technical Point of Contact. The exception will be at the Cape Cod Canal Field Office where weekend work will be allowed.

\*Table 1.0 below identifies the line-item number, description, and frequency of the services to be performed at each location:

**TABLE 1.0**

| Item Numbers            | Description                                                                                                                                            | Frequency                                                                                                                                            |
|-------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>Item 1</b>           | <b>Recreation Area Mowing /String Trimming Bi-Weekly (Approx. 27.4 Acres Total)</b>                                                                    | Mowing and trimming services shall be conducted one (1) time during the month of April and one (1) time every two (2) weeks between May and October. |
| <b>Locations 1 - 11</b> | Ground Maintenance Maps Numbers:<br><br>1. <a href="#">Three Panel Sign (0.72 acres)</a><br>2. Belmont Rock (0.1 acres)<br>3. Herring Run (1.63 acres) | Not to exceed thirteen (13) mowing services during the contract period of performance.                                                               |

|                                                                                                                       |                                                                                                                                                                                                                                                                                                                                                                                                                                                    |                                                                                                                                                                                                                                           |
|-----------------------------------------------------------------------------------------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|                                                                                                                       | <ul style="list-style-type: none"> <li>4. Sagamore Rec. Area<br/>(0.68 acres)</li> <li>5. Sandwich Rec. Area<br/>(5.14 acres)</li> <li>6. Sandcatcher Rec.<br/>Area (4.2 acres)</li> <li>7. Midway Rec. Area<br/>(5.8 acres)</li> <li>8. Bourne Rec. Area<br/>South (1.65 acres)</li> <li>9. Tidal Flats Rec Area<br/>(1.32 acres)</li> <li>10. Buzzards Bay Rec<br/>Area (1.76 acres)</li> <li>11. Canal Field Office<br/>(4.43 acres)</li> </ul> |                                                                                                                                                                                                                                           |
| <p><b>Item 2</b></p> <p><b>Field Mowing's Bi-Weekly (Approx. 6.5 Acres Total)</b></p> <p><b>Locations 12 - 15</b></p> | <p><b>Ground Maintenance Map Numbers:</b></p> <ul style="list-style-type: none"> <li>1. Wings Neck Radar Site (0.48 acres)</li> <li>2. Field A, North Service Road (4.5 acres)</li> <li>3. Field B, North Service Road (0.62 acres)</li> <li>4. Field C, Sagamore (0.91 acres)</li> </ul>                                                                                                                                                          | <p>Field mowing shall be conducted one (1) time during the month of April and one (1) time every two (2) weeks between May and October.</p> <p>Not to exceed Thirteen (13) mowing services during the contract period of performance.</p> |

|                                                                               |                                                                                                                                                                                                                                                                                  |                                                                                                                                                                                                                                                                 |
|-------------------------------------------------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <p><b>Item 3</b></p><br><br><br><p><b>Locations</b></p> <p><b>16 - 20</b></p> | <p><b>Landscaping Services</b></p><br><br><p>Ground Maintenance Maps Numbers:</p> <ul style="list-style-type: none"> <li>1. Canal Field Office</li> <li>2. Herring Run</li> <li>3. Sagamore Rec. Area</li> <li>4. Bourne Rec. Area</li> <li>5. Buzzards Bay Rec. Area</li> </ul> | <p>Three (3) Scheduled services for trimming shrubs/bushes and weeding.</p> <p>May (1<sup>st</sup> Week)</p> <p>July (2<sup>nd</sup> Week)</p> <p>September (2<sup>nd</sup> Week)</p> <p>Exact service dates to be Coordinated w Technical Point of Contact</p> |
| <p><b>Item 4</b></p><br><br><br><p><b>Locations</b></p> <p><b>21 - 24</b></p> | <p><b>Mulching Service</b></p><br><br><p>Ground Maintenance Maps Numbers:</p> <ul style="list-style-type: none"> <li>1. Canal Field Office</li> <li>2. Herring Run Rec Area</li> <li>3. Bourne Rec. Area</li> <li>4. Sagamore Recreation Area</li> </ul>                         | <p>Mulch areas specified one (1) time during the month of May.</p> <p>Exact service date to be Coordinated Technical Point of Contact</p>                                                                                                                       |

8. Permits - The Contractor shall, without additional expense to the Government, be responsible for obtaining any necessary licenses, permits, and letters of certification. The Contractor shall comply with any applicable Federal, State, County, and Municipal laws, codes, and regulations in connection with the performance of the work specified under this contract.

9. Security - The contractor will comply with all established security policies at the Cape Cod Canal. Due to periods of heightened security that may affect the access to the areas covered under this contract, areas may be subject to periodic closures or evacuations, which in turn may

reduce or inhibit the Contractor's ability to access certain areas. During periods of heightened security, the Government reserves the right, at any time, to close any property or portion of property and reschedule and/or cancel any subsequent service in an area. The Contractor shall be notified as soon as practical of any such closure.

10. Hazardous Weather- The Contractor shall comply with established hazardous weather policies at the Cape Cod Canal. In the event of hazardous weather, areas may be subject to periodic closures or evacuations. The Contractor will be notified as soon as possible in the event of closures due to hazardous weather conditions. All contractor property must be removed from Government property when an evacuation notice is given. It is also the contractor's responsibility to find a safe and suitable evacuation site upon notice to evacuate.

11. Contractor Conduct - The work area is located on Federal property across multiple recreation areas. Contractors and employees must comply with CFR 36 Rules and Regulations. Contractors and employees must always act in a professional manner. Alcohol and firearms are prohibited on project grounds.

12. Payment - The Contractor shall furnish the Technical Point of Contact with one invoice per month or at the completion of services. The invoice shall include the invoice date, contract number, dates of service, description of work, quantities, and total amount due per line item. The invoice must also include the company letterhead, and this must match the data that is registered in the System for Award Management (SAM) registry. Payment shall be made monthly for the actual services performed at the applicable contract unit price.

All invoices shall be emailed to the Technical Point of Contact , Justin Nelson at: Justin.L.Nelson@usace.army.mil

NOTE: Final Payment may be held until the Contractor has returned all issued keys to the Technical Point of Contact at the completion of work. Keys are required to be physically handed over or mailed to the Technical Point of Contact . The Contractor assumes all responsibility for loss (which may include the cost of rekeying the applicable project).

## B. Technical Requirements

### General Requirement:

1. Summary - The contractor's work and responsibility shall include, but not be limited to all job planning, programming, scheduling, administration, inspection, personnel, labor, equipment, vehicles, fuel, materials, supplies, supervision, transportation, and quality control necessary to perform the various services required herein at the Cape Cod Canal Project Area. The Canal Project Area includes approximately 34 acres to be mowed/string-trimmed once during the month of April and bi-weekly (May - October) in addition to scheduled landscaping services to include weeding, bush trimming, and mulching.

2. Submittals - Although the Government reviews submissions required by this Performance Work Statement, it is emphasized that the Contractor's work must be completed using proper internal

controls and review procedures. The Government reserves up to 7 days for review and acceptance on each submittal/resubmittal from the date of receipt. If revisions are necessary to the submittals, the Contractor shall make such revisions and shall resubmit to the Government within 7 days of the Government's response, unless additional time is granted by the Government in writing.

The documents identified below must be prepared in accordance with the applicable standards and submitted to the Technical Point of Contact for review and accepted by the Government.

a. Pre-Work Submittals: Submitted within 7 days of contract award. Submittals must be accepted prior to the commencement of any field work.

i. ENG Form 6293 (Accident Prevention Plan Worksheet)

ii. Activity Hazard Analysis; non-mandatory template available: ENG Form 6206 (Activity Hazard Analysis)

iii. ENG Form 6282 (Site Safety and Health Officer Designation Letter)

iv. First-Aid and CPR Personnel requirements

3. References - All work shall be in conformance with all appropriate federal, state, and local regulations.

4. Other Contracts - The Government may undertake or award other contracts for additional work not related to this contract, and the Contractor shall fully cooperate with other Contractors and Government employees. The contractor shall not commit or permit any act, which will interfere with the performance of work by another contractor, or by Government employees.

5. Preferred Sequence for Work Schedules - The Technical Point of Contact shall provide the Contractor with a preferred sequence, or order, of work. (Note: The Contractor must provide sufficient personnel and equipment to accomplish services stated in the contract). The Contractor will then be required to submit a work schedule for each service, and approximate times for beginning and ending of each required service listed. Any proposed change to an approved schedule must be submitted in writing, coordinated, and approved by the Technical Point of Contact in advance of actual schedule changes.

6. Damage to Government and Private Property - The Contractor shall be responsible for restoring all Government facilities or structures damaged because of the contractor's operation. The contractor shall also be responsible for any damage to private property or injury to any person because of the Contractor's operation. The contractor shall notify the Technical Point of Contact immediately of damage to Government and private property and injury to any person resulting from the contractor's operation. All trucks and/or trailers will be driven on existing roads only and not across or through any existing park facilities. The Contractor may be required to restore any landscape features (shrubs, flowers, grasses, etc.), which are damaged or destroyed by the contractor's operation. Damaged or destroyed grass areas shall be re-planted as directed by the Technical Point of Contact, and shrubs and flowers which are damaged or destroyed shall be replaced from nursery stock of like size and kind.

7. Clean Up and Waste Disposal - The contractor shall practice good housekeeping to maintain a safe job site. The contractor shall keep the work area free from accumulation of waste materials. Upon completing work in an area, the contractor shall remove any tools, equipment, and materials that are not the property of the Government. All disturbed areas resulting from contractor activities shall be restored by the contractor to the satisfaction of the Technical Point of Contact. All waste material will be disposed of in trash/recycle dumpsters located onsite and in accordance with all Federal, State, and Local regulations.

8. Environmental Protection - The contractor will take necessary steps to ensure all Federal, State, and Local environmental regulatory requirements are met at no additional cost to the Government. Assurance of compliance with this section by subcontractors shall be the responsibility of the contractor.

9. Sustainability:

The United States Department of Agriculture (USDA) designates certain bio-based products for federal procurement and specifies minimum bio-based content levels for those products. Any designated product that is being offered or supplied under this contract shall meet USDA BioPreferred's minimum bio-based content level. Visit the BioPreferred web site <https://www.biopreferred.gov/BioPreferred/faces/pages/ProductCategories.xhtml> for the complete list of designated products and the associated minimum bio-based content level requirements.

10. Personal Protective Equipment - It is the contractor's responsibility to furnish and supply personnel with the proper personal protective equipment necessary for performing the work.

a. Protective Equipment-All personnel must use appropriate personal protective equipment including but not limited to; eye, hearing, hand, and foot protection) and wear a high visibility safety vest while performing services on Government Property.

11. Contractor's Personnel:

a. Minimum Personnel Requirements - The Contractor shall provide an adequate number of fully qualified personnel to perform the specified service properly and efficiently within the time limits specified. For safety purposes, a minimum of two workers are required on site at all times. At least one (1) contractor employee will be able to communicate with project staff effectively and efficiently.

b. Contact Information-The Contractor shall provide a list of the names and contact phone numbers for all employees prior to them working on Government Property.

c. Employee Conduct - The Contractor shall be responsible for seeing that the firm's employees strictly comply with all Federal, State, and Municipal laws. Any personnel activity, which, in the opinion of the Government, is deemed detrimental to the performance of the contract may result in the removal of Contractor employee/employees.

Examples of unbecoming actions or conduct include but are not limited to the following:

- i. Cursing, harassment, or discrimination of and/or unwarranted physical contact with visitors, USACE personnel, or other contractors
  - ii. Recurring written and/or verbal complaints from visitors, USACE personnel, or other contractors.
  - iii. Unsafe operation of vehicles while on USACE property.
- d. Removal of Contractor's Employees - The Technical Point of Contact may require the Contractor to immediately remove from the work site any employee of the Contractor or subcontractor, who, in the opinion of the Technical Point of Contact, endangers persons or property, or whose physical or mental condition is such that it would impair the employee's ability to satisfactorily perform assigned work. Notification to the Contractor shall be promptly made in writing if time and circumstances permit. Otherwise, notification shall be verbal or by telephone and shall be confirmed in writing as soon as possible. No such removal, however, will reduce the Contractor's obligation to perform all work required under this contract, and immediate replacement will be made as required. This requirement shall not be made the basis of any claim for compensation or damages against the United States or any of its officers or agents.

12. Quality Assurance - The contractor is responsible for the quality control of the contract work. The contractor shall establish and maintain a quality control system to assure compliance with the contract requirements. The government has the right to inspect and test all items called for by the contract, to the extent practicable at all times and at all places during the term of the contract.

13. Inspections:

- a. Contractor Quality Control - The Contractor is responsible for establishing and maintaining an adequate quality control system to satisfactorily inspect and ensure that all work performed by the Contractor's organization in each separate service is in full compliance with this contract and the instructions, provisions, specifications, drawings, and maps herein.
- b. General Inspection - Upon the completion of each mowing cycle, the Contractor will perform an inspection of all areas under this contract to ensure compliance with the performance requirements. The Contractor or his representative must be able to commit personnel, equipment, and resources to correct deficiencies. The Services Inspection Form (form to be provided to the Contractor at the pre-work conference) will be submitted to the Technical Point of Contact to allow verification of results for payment. A Government representative may accompany the contractor on an inspection of completed work and will identify any contract deficiencies. Any deficiencies noted will be corrected within original contract time frames or appropriate deductions in payment will be made for work not corrected.
- c. Equipment/Supplies Inspections - The Technical Point of Contact may inspect required equipment and supplies at any time when in use on Government property. Any equipment found deficient shall be removed from service immediately until faulty conditions have been corrected and passed by the Technical Point of Contact. No such removal will reduce the Contractor's



obligation to perform all work required within the time scheduled under this contract. This requirement shall not be made the basis of any claim for compensation or damages against the United States or any of its officers or agents.

d. Government Inspections - The Government will monitor the Contractor's service performance and make deductions accordingly for work not corrected with the time permitted

14. Receiving and Storing Materials - Government employees will not receive or store any materials or supplies for the contractor.

15. Omissions - This contract may not cover all specified activities, steps, and procedures required to supply the contract product. In case of omission, normal industry, state, or federal standards, practices, specifications, and/or guides shall prevail. In no instance shall an omission be reason to produce less than an acceptable product.

## Equipment

1. Condition of Equipment- All equipment used to perform work under this contract must be in good operating and mechanical condition and comply with EM 385-1-1, Army Corps of Engineers Safety and Health Requirements. A regular schedule of preventive maintenance must be followed on all equipment. All vehicles utilized under this contract will be presentable, serviceable, and shall comply with safety standards. The Contractor's vehicles will be clearly marked with the business name while in all service areas.

### 2. Type of Equipment

a. Mowers shall be gasoline or electric powered self-propelled rotary cutter style. All mowers must be equipped with the original manufacturers' protective devices in place to prevent the discharge of objects which may cause injury to people or damage to property. The contractor will be responsible for any injuries or destruction of property as a result of failing to operate equipment without all proper safety guards in place. Contractor will also be responsible for damage to government property as a result of careless or negligent operation of equipment including turf damage, collisions with park features and facilities, destruction of ornamental or planted trees, shrub and flower beds, etc.

b. In areas where it is not possible to use a standard size mower, the contractor is encouraged to use small mowing equipment such as; push mower, string trimmer and other small power-mowing equipment.

c. String trimmers may be gasoline or electrically operated and equipped with the original manufacturers' protective devices in place to protect the safety of visitors and equipment operators. Trimmers shall only be equipped with nylon string material. Use of steel or other types of cord that will cause damage to trees, shrubs, people or property is prohibited.

d. If mowers are operating adjacent to public and private property, they are required to use mower bagging devices to further prevent any damage to persons or property as deemed appropriate by the Technical Point of Contact.

### 3. Requirements

a. The Contractor shall survey the park or area and report all damage or vandalism to the Technical Point of Contact prior to commencement of service in each area. Any damage found thereafter by the Government's inspector that has not been previously reported by the Contractor shall be assumed to be damage caused by the Contractor's operation, and shall be repaired, replaced, or deducted from the invoice, as determined by the Technical Point of Contact, at no cost to the Government.

b. The Canal experiences large volumes of public recreation at the recreation areas and along the services roads. The Contractor will prioritize the safety of the public while performing work.

c. The Contractor should to the fullest extent possible, avoid mowing during periods of peak visitation to avoid interference with the recreating public. The contractor should avoid all mowing and trimming activities around visitors or their personal property in developed and non-developed locations during the middle part of the day.

d. USACE employees may be in the area for the purpose of performing daily duties. The contractor will cooperate fully with all staff in the area and shall not impede the work of others in any way. Personnel shall not block gates or access points.

4. Mowing Requirements: Cut and power mow grass to a height of not more than two and one-half (2-1/2) inches or less than two (2) inches in each area around each facility and down to the water line. Mowing shall be uniform with no uncut or uneven areas resulting from mowing, overlap, wheel rollover, etc. Mowing shall be conducted in such a manner so there is no wheel damage to the turf or any damage to concrete edges, signs, fences, or trees. Mowing shall not take place close enough to facilities or vehicles to cause damage. Bagging of clippings will be required in marked areas specified in the attached maps. It is the contractor's responsibility to remove and dispose of grass clippings from these specified areas off site following each mow cycle.

5. Trimming Requirements: Trim grass to a height of not more than two and one-half (2-1/2) inches or less than two (2) inches in the area around each facility. Trimming and edging shall be conducted in such a manner so there is no damage to the turf or any damage to concrete edges, signs, fences, or trees. Areas adjacent to facilities must be trimmed using other types of equipment such as string trimmers. Trimming shall be accomplished around all vertical objects such as buildings, guard posts, fences, tables, trash receptacles, electrical pedestals, water fountains, hose bibs, cookers/grills, etc. Trimming shall be done at a minimum each time mowing is performed. The Technical Point of Contact may determine in which area/facility trimming is required in conjunction with maintenance work and where mowing services are not required.

6. Grounds Cleaning: Grounds cleaning will be performed in conjunction with scheduled mowing services, in order to leave the mowing area with an overall neat and clean appearance. The grounds cleaning shall remove all obvious and noticeable trash and litter from the mowing limits which are designated as the mowing boundaries on the location maps attached to these specifications. All trash and litter shall be removed and properly disposed of in bulk refuse

receptacles. All clippings from mowing and trimming shall be removed from mow areas, including sidewalks, parking lots, picnic and bench pads, and walkways.

7. Landscaping: Landscaping will include trimming and shaping shrubs. Shrubs will be trimmed 8 to 12 inches away from buildings, walkways, handrails, and stairs. Shrubs will be trimmed back so as not to overgrow other shrubs in the landscaped areas. Weeds, leaves, needles branches, and litter will be removed from the shrub beds. Weeds will be removed from sidewalks, patio areas as well as from curbing including curb stops in respective areas. Contractor shall be responsible for removal and proper disposal of excess material off government property.

8. Mulching - The contractor shall supply and spread new undyed bark mulch to all landscaping beds such that a minimum depth of three (3) inches is achieved. New mulching shall achieve a uniform level area within the landscaping beds. Any mulch that falls on surfaces not designated for application such as walkways, sidewalks, roadways, parking areas, kiosk pads, or grass shall be removed and cleaned.

9. Restrictions - All mowing and trimming required in an area shall be completed and inspected by the Contractor's Quality Control Inspector prior to beginning work in another area. The Contractor shall notify the Technical Point of Contact or immediately upon completion of services, so that USACE may inspect the work. The Contractor shall be responsible for correction of any and all deficiencies discovered by the Quality Assurance inspection within twenty-four (24) hours at no additional cost to the Government.

10. Changes To Frequency and/or Quantities - The Government reserves the option, should it become necessary, to decrease or increase service frequencies and/or facility quantities in any or all designated project areas. The Government may also, at any time during the duration of this contract, close any property or portion of the property and delete any subsequent service in the closed property or area. The Contractor shall be given adequate notification to prepare for either contingency. This decrease or increase will be deducted from or paid for in accordance with the bidding schedule or a negotiated cost. Any increase in quantity or frequency of services must be negotiated with the Contracting Officer. The Contractor shall not perform any additional services until the issuance of a formal modification signed by the Contracting Officer. In addition, the Technical Point of Contact may, on special occasions decide to reschedule a service frequency in order to avoid conflict with visitation or unnecessary expense. The Contractor shall be given at least 24 hours' notice.

\*\*\* END OF NARRATIVE \*\*\*

## **Requirements**

Grounds Maintenance Services, Cape Cod Canal, Buzzards Bay, MA

## Contract Clauses

### FAR Clauses Incorporated by Reference

| Number    | Title                                                                                                                                                                  | Effective Date | Alternate Deviation | Variation Effective Date |
|-----------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------|---------------------|--------------------------|
| 52.203-19 | Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements.                                                                                    | 2017-01        |                     |                          |
| 52.204-13 | System for Award Management-Maintenance. (Deviation 2026-O0038)                                                                                                        | 2026-02        |                     |                          |
| 52.209-6  | Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded. (Deviation 2026-O0038) | 2026-02        |                     |                          |
| 52.212-4  | Terms and Conditions-Commercial Products and Commercial Services. (Deviation 2026-O0038)                                                                               | 2026-02        |                     |                          |
| 52.219-6  | Notice of Total Small Business Set-Aside. (Deviation 2026-O0038)                                                                                                       | 2026-02        |                     |                          |
| 52.222-36 | Equal Opportunity for Workers with Disabilities. (Deviation 2026-O0038)                                                                                                | 2026-02        |                     |                          |
| 52.222-41 | Service Contract Labor Standards. (Deviation 2026-O0038)                                                                                                               | 2026-02        |                     |                          |

|           |                                                                                          |         |
|-----------|------------------------------------------------------------------------------------------|---------|
| 52.222-50 | Combating Trafficking in Persons. (Deviation 2026-O0038)                                 | 2026-02 |
| 52.222-55 | Minimum Wages for Contractor Workers Under Executive Order 14026. (Deviation 2026-O0038) | 2026-02 |
| 52.222-62 | Paid Sick Leave Under Executive Order 13706. (Deviation 2026-O0038)                      | 2026-02 |
| 52.226-8  | Encouraging Contractor Policies to Ban Text Messaging While Driving.                     | 2024-05 |
| 52.232-33 | Payment by Electronic Funds Transfer-System for Award Management.                        | 2018-10 |
| 52.232-40 | Providing Accelerated Payments to Small Business Subcontractors.                         | 2023-03 |
| 52.233-3  | Protest after Award. (Deviation 2026-O0038)                                              | 2026-02 |
| 52.233-4  | Applicable Law for Breach of Contract Claim. (Deviation 2026-O0038)                      | 2026-02 |

#### DFARS Clauses Incorporated by Reference

| Number       | Title                    | Effective Date | Alternate Deviation | Variation Effective Date |
|--------------|--------------------------|----------------|---------------------|--------------------------|
| 252.203-7000 | Requirements Relating to | 2011-09        |                     |                          |

Compensation of Former DoD  
Officials.

|              |                                                                                                                    |         |                             |         |
|--------------|--------------------------------------------------------------------------------------------------------------------|---------|-----------------------------|---------|
| 252.203-7002 | Requirement to Inform<br>Employees of Whistleblower<br>Rights.                                                     | 2022-12 |                             |         |
| 252.204-7004 | Antiterrorism Awareness Training<br>for Contractors.                                                               | 2023-01 |                             |         |
| 252.204-7012 | Safeguarding Covered Defense<br>Information and Cyber Incident<br>Reporting. (DEVIATION 2024-<br>O0013 REVISION 1) | 2024-05 | Deviation<br>2024-<br>O0013 | 2024-05 |
| 252.204-7018 | Prohibition on the Acquisition of<br>Covered Defense<br>Telecommunications Equipment<br>or Services.               | 2023-01 |                             |         |
| 252.204-7020 | NIST SP 800-171 DoD<br>Assessment Requirements.                                                                    | 2023-11 |                             |         |
| 252.225-7056 | Prohibition Regarding Business<br>Operations with the Maduro<br>Regime.                                            | 2023-01 |                             |         |
| 252.225-7060 | Prohibition on Certain<br>Procurements from the Xinjiang<br>Uyghur Autonomous Region.                              | 2023-06 |                             |         |
| 252.232-7003 | Electronic Submission of<br>Payment Requests and<br>Receiving Reports.                                             | 2018-12 |                             |         |
| 252.232-7010 | Levies on Contract Payments.                                                                                       | 2006-12 |                             |         |
| 252.247-7023 | Transportation of Supplies by<br>Sea.                                                                              | 2024-10 |                             |         |

## FAR Clauses Incorporated by Full Text

| Number    | Title                                                                        | Effective Date | Alternate Deviation | Variation Effective Date |
|-----------|------------------------------------------------------------------------------|----------------|---------------------|--------------------------|
| 52.219-28 | Postaward Small Business Program Rerepresentation.<br>(Deviation 2026-O0038) | 2026-02        |                     |                          |

Postaward Small Business Program Rerepresentation (Feb 2026) (Deviation 2026-O0038)

(a) *Definitions.* As used in this clause-

*Long-term contract* means a contract of more than five years in duration, including options. However, the term does not include contracts that exceed five years in duration because the period of performance has been extended for a cumulative period not to exceed six months under the clause at 52.217-8, Option to Extend Services, or other appropriate authority.

*Small business concern-*

(1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in 13 CFR part 121 and the size standard in paragraph (c) of this clause.

(2) *Affiliates*, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

(b) If the Contractor represented that it was a small business concern, a small disadvantaged business concern, or a joint venture that was any of the small business concerns identified in 19.000(a)(3) prior to award of this contract, the Contractor shall rerepresent its size and socioeconomic status according to paragraph (e) of this clause or, if applicable, paragraph (g) of this clause, upon occurrence of any of the following:

(1) Within 30 days after execution of a novation agreement or within 30 days after modification of the contract to include this clause, if the novation agreement was executed prior to inclusion of this clause in the contract.

(2) Within 30 days after a merger or acquisition that does not require a novation or within 30 days after modification of the contract to include this clause, if the merger or acquisition occurred prior to inclusion of this clause in the contract.

(3) For long-term contracts-

(i) Within 60 to 120 days prior to the end of the fifth year of the contract; and

(ii) Within 60 to 120 days prior to the date specified in the contract for exercising any option thereafter.

(c) The Contractor shall rerepresent its size status in accordance with the size standard in effect at the time of this rerepresentation that corresponds to the North American Industry Classification System (NAICS) code(s) assigned to this contract. The small business size standard corresponding to this NAICS code(s) can be found at <https://www.sba.gov/document/support-table-size-standards>.

(d) The small business size standard for a Contractor providing an end item that it does not manufacture, process, or produce itself, for a contract other than a construction or service contract, is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519, if the acquisition-

(1) Was set aside for small business and has a value above the simplified acquisition threshold;

(2) Used the HUBZone price evaluation preference regardless of dollar value, unless the Contractor waived the price evaluation preference; or

(3) Was an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(e) Except as provided in paragraph (g) of this clause, the Contractor shall make the representation(s) required by paragraph (b) of this clause by validating or updating all its representations in the Representations and Certifications section of the System for Award Management (SAM) and its other data in SAM, as necessary, to ensure that they reflect the Contractor's current status. The Contractor shall notify the contracting officer in writing within the timeframes specified in paragraph (b) of this clause, that the data have been validated or updated, and provide the date of the validation or update.

(f) If the Contractor represented that it was other than a small business concern prior to award of this contract, the Contractor may, but is not required to, take the actions required by paragraphs (e) or (g) of this clause.

(g) If the Contractor does not have representations and certifications in SAM, or does not have a representation in SAM for the NAICS code applicable to this contract, the Contractor is required to complete the following rerepresentation and submit it to the contracting office, along with the contract number and the date on which the rerepresentation was completed:



(1) The Contractor represents that it is, is not a small business concern under 561730 NAICS Code assigned to W912WJ26PXXXX contract number.

(2) *[Complete only if the Contractor represented itself as a small business concern in paragraph (g)(1) of this clause.]* The Contractor represents that it is, is not, a small disadvantaged business concern as defined in 13 CFR 124.1001.

(3) *Women-owned small business (WOSB) joint venture eligible under the WOSB Program.* The Contractor represents that it is, is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). ☐ The Contractor shall enter the name and unique entity identifier of each party to the joint venture: \_\_\_\_.]

(4) *Economically disadvantaged women-owned small business (EDWOSB) joint venture.* The Contractor represents that it is, is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). ☐ The Contractor shall enter the name and unique entity identifier of each party to the joint venture: \_\_\_\_ .]

(5) *Service-disabled veteran-owned small business (SDVOSB) joint venture eligible under the SDVOSB Program.* The Contractor represents that it is, is not an SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements of 13 CFR 128.402. ☐ The Contractor shall enter the name and unique entity identifier of each party to the joint venture: \_\_\_\_.]

(6) *HUBZone joint venture eligible under the HUBZone Program.* *[Complete only if the offeror is a HUBZone small business concern.]* The offeror represents, as part of its offer, that It is, is not a HUBZone joint venture that complies with the requirements of 13 CFR 126.616(a) through (c). ☐ The Contractor shall enter the name and unique entity identifier of each party to the joint venture: .] Each HUBZone small business concern participating in the HUBZone joint venture must be certified as a HUBZone concern. ☐ Contractor to sign and date and insert authorized signer's name and title.]

(End of clause)

|           |                               |         |
|-----------|-------------------------------|---------|
| 52.222-42 | Statement of Equivalent Rates | 2014-05 |
|           | for Federal Hires.            |         |

#### Statement of Equivalent Rates for Federal Hires (May 2014)

In compliance with the Service Contract Labor Standards statute and the regulations of the Secretary of Labor ( 29 CFR Part 4), this clause identifies the classes of service employees expected to be employed under the contract and states the wages and fringe benefits payable

to each if they were employed by the contracting agency subject to the provisions of 5 U.S.C. 5341 or 5332.

This Statement is for Information Only: It is not a Wage Determination

| Employee Class  | Monetary Wage-Fringe Benefits |
|-----------------|-------------------------------|
| _____           | _____                         |
| _____           | _____                         |
| _____           | _____                         |
| _____           | _____                         |
| _____           | _____                         |
| _____           | _____                         |
| _____           | _____                         |
| (End of clause) |                               |

**DFARS Clauses Incorporated by Full Text**

| Number       | Title                                    | Effective Date | Alternate Deviation | Variation Effective Date |
|--------------|------------------------------------------|----------------|---------------------|--------------------------|
| 252.232-7006 | Wide Area WorkFlow Payment Instructions. | 2023-01        |                     |                          |

**WIDE AREA WORKFLOW PAYMENT INSTRUCTIONS (JAN 2023)**

(a) Definitions. As used in this clause-

"Department of Defense Activity Address Code (DoDAAC)" is a six position code that uniquely identifies a unit, activity, or organization.

"Document type" means the type of payment request or receiving report available for creation in Wide Area WorkFlow (WAWF).

"Local processing office (LPO)" is the office responsible for payment certification when payment certification is done external to the entitlement system.

"Payment request" and "receiving report" are defined in the clause at 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(b) Electronic invoicing. The WAWF system provides the method to electronically process vendor payment requests and receiving reports, as authorized by Defense Federal Acquisition Regulation Supplement (DFARS) 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(c) WAWF access. To access WAWF, the Contractor shall-

(1) Have a designated electronic business point of contact in the System for Award Management at <https://www.sam.gov>; and

(2) Be registered to use WAWF at <https://wawf.eb.mil/> following the step-by-step procedures for self-registration available at this web site.

(d) WAWF training. The Contractor should follow the training instructions of the WAWF Web-Based Training Course and use the Practice Training Site before submitting payment requests through WAWF. Both can be accessed by selecting the "Web Based Training" link on the WAWF home page at <https://wawf.eb.mil/>

(e) WAWF methods of document submission. Document submissions may be via web entry, Electronic Data Interchange, or File Transfer Protocol.

(f) WAWF payment instructions. The Contractor shall use the following information when submitting payment requests and receiving reports in WAWF for this contract or task or delivery order:

(1) Document type. The Contractor shall submit payment requests using the following document type(s):

(i) For cost-type line items, including labor-hour or time-and-materials, submit a cost voucher.

(ii) For fixed price line items-

(A) That require shipment of a deliverable, submit the invoice and receiving report specified by the Contracting Officer.

---

(Contracting Officer: Insert applicable invoice and receiving report document type(s) for fixed price line items that require shipment of a deliverable.)

(B) For services that do not require shipment of a deliverable, submit either the Invoice 2in1, which meets the requirements for the invoice and receiving report, or the applicable invoice and receiving report, as specified by the Contracting Officer.

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(Contracting Officer: Insert either "Invoice 2in1" or the applicable invoice and receiving report document type(s) for fixed price line items for services.)

(iii) For customary progress payments based on costs incurred, submit a progress payment request.

(iv) For performance based payments, submit a performance based payment request.

(v) For commercial financing, submit a commercial financing request.

(2) ) Fast Pay requests are only permitted when Federal Acquisition Regulation (FAR) 52.213-1 is included in the contract.

[Note: The Contractor may use a WAWF "combo" document type to create some combinations of invoice and receiving report in one step.]

(3) Document routing. The Contractor shall use the information in the Routing Data Table below only to fill in applicable fields in WAWF when creating payment requests and receiving reports in the system.

Routing Data Table\*

| Field Name in WAWF  | Data to be entered in WAWF |
|---------------------|----------------------------|
| Pay Official DoDAAC | _____                      |
| Issue By DoDAAC     | _____                      |

|                           |       |       |
|---------------------------|-------|-------|
| Admin DoDAAC              | _____ |       |
| Inspect By DoDAAC         |       | _____ |
| Ship To Code              | _____ |       |
| Ship From Code            | _____ |       |
| Mark For Code             | _____ |       |
| Service Approver (DoDAAC) |       | _____ |
| Service Acceptor (DoDAAC) |       | _____ |
| Accept at Other DoDAAC    |       | _____ |
| LPO DoDAAC                | _____ |       |
| DCAA Auditor DoDAAC       |       | _____ |
| Other DoDAAC(s)           | _____ |       |

(\*Contracting Officer: Insert applicable DoDAAC information. If multiple ship to/acceptance locations apply, insert "See Schedule" or "Not applicable.")

(\*\*Contracting Officer: If the contract provides for progress payments or performance-based payments, insert the DoDAAC for the contract administration office assigned the functions under FAR 42.302(a)(13).)

(4) Payment request. The Contractor shall ensure a payment request includes documentation appropriate to the type of payment request in accordance with the payment clause, contract financing clause, or Federal Acquisition Regulation 52.216-7, Allowable Cost and Payment, as applicable.

(5) Receiving report. The Contractor shall ensure a receiving report meets the requirements of DFARS Appendix F.

(g) WAWF point of contact.

(1) The Contractor may obtain clarification regarding invoicing in WAWF from the following contracting activity's WAWF point of contact.

\_\_\_\_\_

(Contracting Officer: Insert applicable information or "Not applicable.")

(2) Contact the WAWF helpdesk at 866-618-5988, if assistance is needed.

(End of clause)

## Addendum to Contract Clauses

### FAR Clauses Incorporated by Reference

| Number    | Title                                                                                           | Effective Date | Alternate Deviation | Variation Effective Date |
|-----------|-------------------------------------------------------------------------------------------------|----------------|---------------------|--------------------------|
| 52.204-9  | Personal Identity Verification of Contractor Personnel.                                         | 2011-01        |                     |                          |
| 52.209-10 | Prohibition on Contracting With Inverted Domestic Corporations. (Deviation 2026-O0038)          | 2026-02        |                     |                          |
| 52.222-3  | Convict Labor. (Deviation 2026-O0038)                                                           | 2026-02        |                     |                          |
| 52.223-2  | Reporting of Biobased Products Under Service and Construction Contracts. (Deviation 2026-O0038) | 2026-02        |                     |                          |
| 52.223-23 | Sustainable Products. (Deviation 2026-O0038)                                                    | 2026-02        |                     |                          |
| 52.240-91 | Security Prohibitions and Exclusions. (Deviation 2026-O0038)                                    | 2026-02        |                     |                          |
| 52.244-6  | Subcontracts for Commercial Products and Commercial Services. (Deviation 2026-O0038)            | 2026-02        |                     |                          |

### DFARS Clauses Incorporated by Reference

| Number | Title | Effective Date | Alternate Deviation | Variation Effective |
|--------|-------|----------------|---------------------|---------------------|
|--------|-------|----------------|---------------------|---------------------|

|              |                                                                                     |         |                      | Date    |
|--------------|-------------------------------------------------------------------------------------|---------|----------------------|---------|
| 252.237-7010 | Prohibition on Interrogation of Detainees by Contractor Personnel.                  | 2023-01 |                      |         |
| 252.243-7001 | Pricing of Contract Modifications.                                                  | 1991-12 |                      |         |
| 252.244-7999 | Subcontracts for Commercial Products or Commercial Services. (DEVIATION 2026-O0015) | 2026-02 | Deviation 2026-O0015 | 2026-01 |

#### FAR Clauses Incorporated by Full Text

| Number   | Title                                      | Effective Date | Alternate Deviation | Variation Effective Date |
|----------|--------------------------------------------|----------------|---------------------|--------------------------|
| 52.217-9 | Option to Extend the Term of the Contract. | 2000-03        |                     |                          |

#### Option to Extend the Term of the Contract (Mar 2000)

(a) The Government may extend the term of this contract by written notice to the Contractor within 15 calendar days; provided that the Government gives the Contractor a preliminary written notice of its intent to extend at least 30 calendar days before the contract expires. The preliminary notice does not commit the Government to an extension.

(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.

(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed 2 years.

(End of clause)

|          |                                    |         |  |  |
|----------|------------------------------------|---------|--|--|
| 52.252-2 | Clauses Incorporated by Reference. | 1998-02 |  |  |
|----------|------------------------------------|---------|--|--|



## Clauses Incorporated By Reference (Feb 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

<https://www.acquisition.gov/>

(End of clause)

52.252-6                      Authorized Deviations in Clauses.                      2020-11

## Authorized Deviations in Clauses (Nov 2020)

(a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the clause.

(b) The use in this solicitation or contract of any DFARS (48 CFR Chapter 2) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of clause)

## List of Contract Documents, Exhibits, or Attachments

### ATTACHMENTS:

PLEASE SEE ATTACHMENTS INCLUDED SEPARATELY FOR ADDITIONAL INFORMATION.

### SECURITY REQUIREMENTS:

General security requirements and guidance: The security requirements described below apply to all contract personnel (including employees of the prime Contractor ("Contractor") and all subcontractor employees) supporting the performance requirements of this contract. The Contractor is responsible for compliance with these security requirements. Questions regarding security matters shall be addressed to the designated Government representative (eg., Contracting Officer Representative (COR), Requiring Activity (RA) representative, or Contracting Officer (if a COR or other RA representative is not appointed)). Contract personnel are critical to the overall security and safety of US Army Corps of Engineers (USACE) installations, facilities and activities, and security awareness training contributes to those efforts. The Department of Defense (DoD) and Army security training requirements specified below, if applicable, are performance requirements; all applicable contract personnel shall complete initial training within 30 days of contract award or the date new contract personnel begin performance on the contract. Within five business days from the completion of training, the Contractor shall provide written documentation (e.g., email or memorandum) to the Government representative. The documentation shall include the names of contract personnel trained and which training they completed; the Contractor shall maintain training records as part of their contract files and be prepared to provide copies of training certificates to the Government representative. Contractor personnel and vehicles are subject to search when entering federal installations. Additionally, all contract personnel shall comply with Force Protection Condition (FPCON) measures, Random Antiterrorism Measures (commonly referred to as "RAMs"), and Health Protection Condition (HPCON) measures. The Contractor is responsible for meeting performance requirements during elevated FPCON and/or HPCON levels in accordance with applicable RA plans and procedures -this includes identifying mission essential and non-mission essential personnel. In addition to the changes otherwise authorized by the changes clauses of this contract, should FPCON or HPCON levels at any individual facility or installation change, the Government may implement security changes that affect contract personnel. The Contractor shall ensure all contract personnel are aware of their security responsibilities, including any site-specific requirements identified in local policies or procedures.

Suspicious Activity Reporting training (e.g. iWATCH, CorpsWatch, or See Something, Say Something): All contract personnel shall receive initial and annual refresher training from the RA representative on the local suspicious activity reporting program. This locally developed training provides contract personnel with general information on suspicious behavior, and guidance on reporting suspicious activity to the project manager, security representative or law enforcement entity.

**WAGE DETERMINATIONS:**

The Wage Determination for this project can be found at:

<https://sam.gov/wage-determination/2015-4045/34>

Wage Determination No.: 2015-4045

Revision No.: 34

Revised Date: 03 December 2025

\*\*\* END OF NARRATIVE \*\*\*

## Solicitation Provisions

### FAR Provisions Incorporated by Reference

| Number   | Title                                                                                        | Effective Date | Alternate Deviation | Variation Effective Date |
|----------|----------------------------------------------------------------------------------------------|----------------|---------------------|--------------------------|
| 52.204-7 | System for Award Management-Registration. (Deviation 2026-O0038)                             | 2026-02        |                     |                          |
| 52.212-1 | Instructions to Offerors-Commercial Products and Commercial Services. (Deviation 2026-O0038) | 2026-02        |                     |                          |

### DFARS Provisions Incorporated by Reference

| Number       | Title                                                              | Effective Date | Alternate Deviation | Variation Effective Date |
|--------------|--------------------------------------------------------------------|----------------|---------------------|--------------------------|
| 252.203-7005 | Representation Relating to Compensation of Former DoD Officials.   | 2022-09        |                     |                          |
| 252.204-7008 | Compliance with Safeguarding Covered Defense Information Controls. | 2016-10        |                     |                          |
| 252.204-7019 | Notice of NIST SP 800-171 DoD Assessment Requirements.             | 2023-11        |                     |                          |
| 252.204-7024 | Notice on the Use of the Supplier Performance Risk System.         | 2023-03        |                     |                          |
| 252.225-7055 | Representation Regarding                                           | 2022-05        |                     |                          |

Business Operations with the  
Maduro Regime.

|              |                                                                                                          |         |
|--------------|----------------------------------------------------------------------------------------------------------|---------|
| 252.225-7059 | Prohibition on Certain<br>Procurements from the Xinjiang<br>Uyghur Autonomous Region-<br>Representation. | 2023-06 |
|--------------|----------------------------------------------------------------------------------------------------------|---------|

#### DFARS Provisions Incorporated by Full Text

| Number       | Title                                                                          | Effective<br>Date | Alternate<br>Deviation | Variation<br>Effective<br>Date |
|--------------|--------------------------------------------------------------------------------|-------------------|------------------------|--------------------------------|
| 252.204-7016 | Covered Defense<br>Telecommunications Equipment<br>or Services-Representation. | 2019-12           |                        |                                |

#### COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES- REPRESENTATION (DEC 2019)

(a) Definitions. As used in this provision, "covered defense telecommunications equipment or services" has the meaning provided in the clause 252.204-7018, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services.

(b) Procedures. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for "covered defense telecommunications equipment or services".

(c) Representation. The Offeror represents that it [ ] does, [ ] does not provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.

(End of provision)

252.204-7017      Prohibition on the Acquisition of      2021-05  
Covered Defense  
Telecommunications Equipment  
or Services-Representation.

## PROHIBITION ON THE ACQUISITION OF COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES-REPRESENTATION (MAY 2021)

The Offeror is not required to complete the representation in this provision if the Offeror has represented in the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does not provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument."

(a) Definitions. "Covered defense telecommunications equipment or services," "covered mission," "critical technology," and "substantial or essential component," as used in this provision, have the meanings given in the 252.204-7018 clause, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services, of this solicitation.

(b) Prohibition. Section 1656 of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91) prohibits agencies from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system.

(c) Procedures. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) at <https://www.sam.gov> for entities that are excluded when providing any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless a waiver is granted.

(d) Representation. If in its annual representations and certifications in SAM the Offeror has represented in paragraph (c) of the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does" provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual

instrument, then the Offeror shall complete the following additional representation:

The Offeror represents that it ☐ will ☐ will not provide covered defense telecommunications equipment or services as a part of its offered products or services to DoD in the performance of any award resulting from this solicitation.

(e) Disclosures. If the Offeror has represented in paragraph (d) of this provision that it "will provide covered defense telecommunications equipment or services," the Offeror shall provide the following information as part of the offer:

(1) A description of all covered defense telecommunications equipment and services offered (include brand or manufacturer; product, such as model number, original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable).

(2) An explanation of the proposed use of covered defense telecommunications equipment and services and any factors relevant to determining if such use would be permissible under the prohibition referenced in paragraph (b) of this provision.

(3) For services, the entity providing the covered defense telecommunications services (include entity name, unique entity identifier, and Commercial and Government Entity (CAGE) code, if known).

(4) For equipment, the entity that produced or provided the covered defense telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known).

(End of provision)

## Addendum to 52.212-1, Instructions to Offerors - Commercial Products and Commercial Services

### INSTRUCTIONS TO VENDORS:

VENDORS SUBMITTING A QUOTE IN RESPONSE TO A SOLICITATION ARE RESPONSIBLE FOR ADHERING TO ALL INSTRUCTIONS AND TERMS AND CONDITIONS INCLUDED IN THE SOLICITATION. FAILURE TO DO SO MAY RESULT IN QUOTES BEING DEEMED NON-RESPONSIVE

### INFORMATION:

1. This is a Request for Quotations (RFQ) in accordance with Federal Acquisition Regulation (FAR) Part 12.
2. The Government may perform a comparative evaluation (comparing quotations to each other) to select the contractor that is best suited and provides the best value, considering the evaluation factors in this solicitation.
3. Evaluation factors will be technical, price, and past performance. Failure to provide sufficient documentation for Government evaluation for these factors with quote submission shall result in a quote being deemed non-responsive.
4. All responsible sources may submit a quote which, if timely received, must be considered by the Agency.
5. The Government may request that a vendor respond to a Quote Verification after the solicitation closes, but prior to award. The vendor shall respond in sufficient detail to all questions or statements no later than the response date and time listed in the correspondence. Failure to do so may result in quotes being deemed non-responsive and removed from consideration. The Government is under no obligation to provide extensions for responses.
6. Information on previously awarded contract (if no information is listed the requirement is considered "new"):
  - a. Previous contract was awarded to: GULF HOLDINGS, LLC
  - b. Previous contract awarded amount: \$114,092.80
  - c. Interested vendors are advised that scope may differ from previous contract
  - d. No additional information on previous contracts will be provided

### QUESTIONS REGARDING SOLICITATIONS:

1. Questions regarding the solicitation shall be directed to the Contract Specialist:



a. Name: Alicia N. LaCrosse

b. Phone: 978-318-8902

c. Email: Alicia.N.LaCrosse@usace.army.mil

2. Technical Points of Contact shall not provide responses to interested vendors.

#### QUOTE SUBMISSION:

1. Quotes shall be submitted via email to the Contract Specialist listed above no later than the closing date and time identified in the solicitation or subsequent amendments.

2. The Government is under no obligation to consider any quote received after the solicitation closing date or time.

3. Interested vendors shall submit signed copies of all material amendments (SF30) with their quotes. Failure to do so will result in quotes being deemed non-responsive and removed from consideration.

#### BID SCHEDULES:

1. If a Bid Schedule is included in the solicitation, vendors shall complete the bid schedule in its entirety (all tasks, all years).

2. Vendors shall enter \$0.00 on Bid Schedules in which items are Not Separately Priced. Blank entries will not be considered and will result in quotes being deemed non-responsive.

3. Failure to complete the Bid Schedule in its entirety and return same with a quote will result in quotes being deemed non-responsive.

4. When Bid Schedules or Contract Line Item Numbers (CLINs) require unit pricing and total amounts, unit pricing shall govern in case of discrepancy between unit prices and total amounts.

#### SITE VISITS:

1. If dates/times for site visits are included in the solicitation, then interested vendors will be permitted to visit the site during those dates/times. No other dates/times will be permitted for site visits.

2. If no dates/times for site visits are included in the solicitation, then interested vendors shall contact the Technical Point of Contact as identified in the solicitation to schedule a site visit.

3. No site visits will be permitted AFTER a solicitation closes.

#### SYSTEM FOR AWARD MANAGEMENT (SAM) REGISTRATIONS:

1. In accordance with FAR Clause 52.204-7:

a. Vendors are REQUIRED to be registered in SAM when submitting a quotation and shall continue to be registered until time of award, during performance, and through final payment.

b. "Registered" in SAM means that the Government has marked the record "Active".

2. The Government will deem quotes non-responsive from vendors that do not have an active SAM at the time of quote submission or by date/time of solicitation closing.

3. Provide Unique Entity Identifier (UEI): \_\_\_\_\_

4. Provide CAGE code: \_\_\_\_\_

SUBMITTALS:

5. The awarded Contractor will be required to provide all submittals within the time stated in the solicitation and resultant contract. Failure to do so may result in termination.

\*\*\* END OF NARRATIVE \*\*\*

## Evaluation - Commercial Products and Commercial Services

### FAR Provisions Incorporated by Full Text

| Number   | Title                                                                  | Effective Date | Alternate Deviation | Variation Effective Date |
|----------|------------------------------------------------------------------------|----------------|---------------------|--------------------------|
| 52.212-2 | Evaluation-Commercial Products and Commercial Services.<br>(Deviation) | 2026-02        |                     |                          |

### Evaluation-Commercial Products and Commercial Services (Feb 2026) (Deviation)

(a) Evaluation factors. The Government will award a contract resulting from this solicitation to the responsible Quoter whose quote conforming to the solicitation will be most advantageous to the Government, price and other factors considered. The following factors will be used to evaluate quotes:

#### i. Technical

#### ii. Price

#### iii. Past Performance

(b) *Options (if applicable)*. The Government will evaluate quotes for award purposes by adding the total price for all options to the total price for the basic requirement. The Government may determine that a quote is unacceptable if the option prices are significantly unbalanced. The evaluation of options does not obligate the Government to exercise the option(s).

(End of provision)

## **Addendum to Evaluation - Commercial Product and Commercial Services**

### **Evaluation--Commercial Products and Commercial Services Revolutionary Federal Acquisition Regulation (RFO) Part 12**

1. Addendum. The Government may perform a comparative evaluation (comparing quotes to each other) to select the contractor that is best suited and can perform work at a fair and reasonable price, considering the evaluation factors in this solicitation.

a. Potential vendors are notified that the evaluation factors shall be technical, price, and past performance.

b. By submission of its quote, the vendor agrees to comply with all solicitation requirements, including terms and conditions, representations and certifications, and technical requirements, in addition to those identified as evaluation factors.

2. Evaluation factors. The Government will award a Purchase Order resulting from this solicitation to the responsible vendor whose quotation conforms to the solicitation and is most advantageous to the Government, price and other factors considered. The following factors will be used to evaluate quotes:

a. Technical

b. Price

c. Past Performance

3. Options (if applicable). The Government will evaluate quotes for award purposes by adding the total price for all options to the total price for the basic requirement. The Government may determine that a quote is unacceptable if the option prices are significantly unbalanced. The evaluation of options does not obligate the Government to exercise the option(s).

4. Evaluation process.

a. Step 1 - Evaluate all quotes for responsiveness and reject quotes not considered responsive.

b. Step 2 - The Government may perform a comparative evaluation of all quotes deemed responsive.

c. Step 3 - Contracting Officer will follow award process.

A. Action/Step-1 (Responsiveness).

i. Initially, the Government will verify the quote is signed, via SF 1449, blocks 30a-c and signed copies of all material amendments have been submitted. If the SF1449 is signed and signed copies of material amendments have been included, the evaluation will continue. If the SF 1449

blocks 30a-c are not completed, and/or material amendments not signed and returned, the quote will be determined non-responsive, and quote will be eliminated from any further evaluation.

ii. Government will then verify vendor's quote has fully provided all requirements stated above in FAR 52.212-1 Addendum. If the quote schedule is not completed, the quote will be determined non-responsive, and quote will be eliminated from any further evaluation.

iii. Government will then verify quoter's Technical factors information requested in the Solicitation Survey is fully provided. Per solicitation requirements, if the survey included with the solicitation documents is not completed, the quote will be determined non-responsive, and quote will be eliminated from any further evaluation.

iv. If quoter is found to be responsive from information provided the evaluation will continue to the next Action/Step (Review Technical Factors Information).

#### B. Action/Step 2 (Review Technical Factors Information).

i. Government will review key personnel, subcontractor teaming arrangements, documents, and certifications as they relate to the solicitation. Subcontractor teaming arrangements shall be considered a confirmation from a subcontractor that they agree to perform the work required by the solicitation in conjunction with the prime contractor.

#### C. Action/Step-3 (Price Evaluation).

i. The Government shall rank all responsive quotes from the lowest price to the highest price received, including any options if applicable.

ii. Only firm fixed price quotes will be evaluated. A quote using a sliding price scale or subject to escalation based on any contingency will not be accepted and will be considered non-conforming to this solicitation.

iii. A quoter's pricing will be determined by multiplying any quantities identified in the pricing schedule by the proposed unit price for each task or line item to confirm the extended amount for each. The price evaluation will document reasonableness and affordability of the total evaluated price.

#### D. Action /Step 4 (Past Performance).

i. The Government shall review the recent and relevant past performance as listed in the survey. Recent contracts are those within the past three years. "Relevant" means the performance being considered must have a logical connection to the work described in the solicitation. Normally, relevance would include such aspects as the product or service similarity, product or service complexity, contract type, and magnitude. Magnitude is important because it will define not only the scope but project similarity to this requirement.

- ii. Vendors whose System for Award Management (SAM) registration includes a Responsibility /Qualification record due to termination for cause or default, or administrative agreement, may be determined unacceptable and quote will be eliminated from any further evaluation.
- iii. Only past performance of the prime contractor shall be considered. Past performance of subcontractors shall not be considered unless a teaming arrangement is submitted in response to the Request for Quotation.
- iv. Quoter's shall insert proposed unit and extended totals for each task or line item as required. Any quote that fails to cite a price for each item or fails to make an entry that indicates service will not be provided for an Item will be rejected as non-conforming to this solicitation. Quotes that fail to price all items or indicate that the amount is \$0 or Not Separately Priced (NSP) will be rejected as nonconforming to this solicitation.
- v. After final price ranking is complete the Contracting Officer will continue to the next Action/Step (Award Process).

E. Action/Step-4 (Award Process).

- i. The Contracting Officer may conduct a comparative evaluation of all responsive quotes. A Purchase Order will be awarded to the vendor that submitted a responsive quote with acceptable past performance that includes fair and reasonable pricing, and who is considered technically capable of performing the work as required by the solicitation.
- ii. Quoters are cautioned to submit sufficient information for evaluation. Communication conducted to resolve minor or clerical errors would not constitute discussions and the contracting officer reserves the right to award a contract without the opportunity for quote revisions.
- iii. The Government intends to award a contract without discussions with respective quoters. The Government, however, reserves the right to conduct discussions if deemed in its best interest.

\*\*\* END OF NARRATIVE \*\*\*

## Addendum to Solicitation Provisions

### FAR Provisions Incorporated by Reference

| Number    | Title                                                                                                                           | Effective Date | Alternate Deviation | Variation Effective Date |
|-----------|---------------------------------------------------------------------------------------------------------------------------------|----------------|---------------------|--------------------------|
| 52.203-18 | Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation. | 2017-01        |                     |                          |
| 52.217-5  | Evaluation of Options. (Deviation 2026-O0038)                                                                                   | 2026-02        |                     |                          |
| 52.223-1  | Biobased Product Certification. (Deviation 2026-O0038)                                                                          | 2026-02        |                     |                          |

### FAR Provisions Incorporated by Full Text

| Number   | Title                                              | Effective Date | Alternate Deviation | Variation Effective Date |
|----------|----------------------------------------------------|----------------|---------------------|--------------------------|
| 52.252-1 | Solicitation Provisions Incorporated by Reference. | 1998-02        |                     |                          |

### Solicitation Provisions Incorporated by Reference (Feb 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

<https://www.acquisition.gov/>

(End of provision)

|          |                                      |         |
|----------|--------------------------------------|---------|
| 52.252-5 | Authorized Deviations in Provisions. | 2020-11 |
|----------|--------------------------------------|---------|

Authorized Deviations in Provisions (Nov 2020)

(a) The use in this solicitation of any Federal Acquisition Regulation (48 CFR Chapter 1) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the provision.

(b) The use in this solicitation of any DFARS (48 CFR Chapter 2) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of provision)